Brazoria County District Court

Cause No. 2025-CV-0023

Tyler Willis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 29, 2025
Plaintiff's counsel:	Anthony Galvan, Arias & Perry Injury Lawyers

Parties

Plaintiff Tyler Willis is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance carrier authorized to do business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which this claim is brought.

Facts

On September 20, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Baytown, Texas, when another vehicle traveling in the opposite direction crossed the center line and collided head-on with Plaintiff's vehicle. The impact was low in speed but caused the airbags to deploy and the vehicles to sustain visible damage. Plaintiff reported the collision to Defendant promptly and submitted all documentation requested. Defendant's insured was the at-fault driver, and Defendant has accepted liability for the loss under the applicable coverage. Plaintiff's claim for bodily injury was presented to Defendant, but Defendant has failed to offer a fair settlement.

Negligence

Defendant, through its claims personnel, owed Plaintiff a duty to investigate the claim promptly, fairly, and in good faith, and to pay benefits owed under the policy. Defendant breacehd that duty by delaying its evaluation of the claim, failing to adequately consider the medical evidence of Plaintiff's shoulder injury, and refusing to make a reasonable offer. Such conduct violates the Texas Insurance Code and constitutes unfair settlement practices.

Damages

As a direct result of the collision, Plaintiff suffered a serious shoulder injury requiring medical treatment, physical therapy, and time away from work. Plaintiff has incurred medical expenses, lost wages, and continuing pain and loss of function. Plaintiff seeks actual damages, statutory damages, and attorney's fees. Plaintiff demands judgment against Defendant in the amount of $171,000.00, together with pre-judgment and post-judgment interest and all other relief to which Plaintiff may be entitled.